

Court No. - 46

Case :- WRIT - C No. - 17399 of 2020

Petitioner :- Banwari Lal

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Rajesh Kumar Verma

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Naheed Ara Moonis,J.

Hon'ble Vivek Varma,J.

Heard Sri Rajesh Kumar Verma, learned counsel for the petitioner, learned Standing counsel for the respondent nos. 1, 2 and 3 and Sri Mahboob Ahmad, learned counsel for the respondent no.4.

The present writ petition has been filed with the following relief;

1. Issue a writ, order or direction in the nature of certiorari to quash the recovery citation dated 3.12.2019 a sum of Rs. 191777/- issued by the respondent no. 3 (Annexure No.1).

2. Issue a writ, order or direction in the nature of mandamus directing to the respondents to not harass the petitioner or do not take any further action against the petitioner till the pendency of the present writ petition.

3. Issue any other writ, order or direction, which this Hon'ble Court may deem fit and proper under the circumstances of the case.

4. Issue the award cost of this writ petition in favour of the petitioner."

It is contended by Sri Mahboob Ahmad, learned counsel for the respondent no. 4 that the petitioner is actively involved in theft of electricity, as an inspection was made on the premises of the petitioner on 14.7.2018 in pursuance whereof a provisional assessment order was passed on 6.10.2018 and the petitioner was asked to submit his objection. The provisional assessment order was sent through registered post but the petitioner did not submit any objection and as such the final assessment order was passed on 2.8.2019.

Copy of the assessment order dated 2.8.2019 has been served upon the counsel for the petitioner in the court today by learned counsel Sri Mahboob

Ahmad.

He further submits that the petitioner has a remedy of filing an appeal under Section 127 of the Electricity Supply Code. The learned counsel for the petitioner does not dispute that an appeal lies against the assessment order.

Under the aforesaid circumstance of the case, it is directed that if the petitioner prefers an appeal within three weeks from today, the same shall be considered on its merit by the learned Tribunal expeditiously in accordance with law.

The writ petition is accordingly disposed of.

Order Date :- 2.11.2020
Shahnawaz